

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 16

Honorable Vincent I. Parrett, Presiding

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2270

August 28, 2026

9:00 and 9:01 A.M.

Unauthorized Recording of Court Proceedings will be Punished

ORAL ARGUMENT

If you are contesting the tentative ruling then by 4 PM today you must notify:

- (1) The Court by calling **(408) 808-6856**, and
- (2) The other side by phone or email that you will appear at the hearing to contest the tentative.

If you fail to notify the court and opposing side by 4 PM then no oral argument will be heard and the tentative ruling becomes the final ruling. (C.R.C. 3.1308(a)(1) & Local Rule 8.D.)

APPEARANCES

The Court encourages in-person appearances for all matters.

The Court discourages remote appearances.

The Court forbids phone-only appearances.

If, despite the above clear guidance, you still elect to appear remotely in Department 16 then you must appear by video using our Court's Unicorn Digital Courtroom ("UDC") system. If for whatever reason you do not like using UDC, *then come to D16 in person.*

To use UDC, click or copy and paste this link into your internet browser & scroll to Department 16: https://www.scscourt.org/general_info/ra_teams/video_hearings_teams.shtml
When using UDC you must *separately register for each case* in which you appear remotely. If you find UDC too cumbersome, *then come to D16 in person.*

Proposed Orders filed by counsel after the hearing must include the Judicial Council Form EFS-020 Proposed Order Cover Sheet.

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:01 <u>1</u>			
9:01 <u>2</u>			
9:01 <u>3</u>			
9:01 <u>4</u>			
9:01 <u>5</u>			
9:00 <u>1</u>	24CV451783	<i>Onpath Federal Credit Union</i> <i>v.</i> <i>Emily Begines, et al.</i>	Order on Plaintiff's Motion for Judgment on the Pleadings against Defendant See Line 1 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order & Judgment
9:00 <u>2</u>	25CV472081	<i>Shan Allen Laliberte, et al.</i> <i>v.</i> <i>F.S. Trucking Company, et al.</i>	Order on Plaintiff Laliberte's Motion to deem Plaintiff's Request for Admissions, Set One, Admitted by Defendant Daniel Bonilla Estacio and for Sanctions At the request of the moving party, this Motion is OFF CALENDAR. SO ORDERED.

9:00 3	22CV393759	<i>Rhene Cruz, et al.</i> v. <i>General Motors, LLC, et al.</i>	Order on Plaintiffs' Motion for Attorney's Fees and Costs See Line 3 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 4	24CV442364	<i>Alpha Anderson</i> v. <i>Alta Mesa Cemetery Association, et al.</i>	Order on Plaintiff's Anderson's Motion for Relief to Reinstate the Case on Docket and Set a Trial Date See Line 4 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 5	25CV482807	<i>Santa Clara Valley Water District</i> v. <i>Mildred Peck, et al.</i>	Order on Plaintiff Santa Clara Valley Water District's Motion for Prejudgment Possession See Line 5 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 6	22CV407932	<i>J.C.</i> v. <i>Watchtower Bible and Tract Society of New York, Inc., et al.</i>	Order on Defendant West Congregation of Jehovah's Witnesses, San Jose, CA, Inc.'s Motion for Summary Judgment or, in the alternative, Summary Adjudication See Line 6 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.

9:00 7			
9:00 8			
9:00 9			
9:00 10			
9:00 11			
9:00 12			
9:00 13			
9:00 14			
9:00 15			

Line 1

Case Name: *Onpath Federal Credit Union v. Emily Begines, et al.*

Case No.: 24CV451783

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Onpath Federal Credit Union (“Plaintiff”) moves for judgment on the pleadings in favor of Plaintiff and against Defendant Emily Begines (“Defendant”) on the grounds that Defendant’s answer fails to state facts sufficient to constitute a defense and based on the Order Deeming Plaintiff’s Requests for Admissions Admitted entered on October 24, 2025. Notice of Motion (the “Motion”) at 1:22-27 (filed: Jan. 14, 2026).

The Motion came on for hearing on August 28, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Chronology & Admissions by Defendant

On November 15, 2024, Plaintiff filed a Complaint with a First Cause of Action for Breach of Contract against Defendant for damages: (1) in the amount of \$41,286.96, *plus* (2) suits of cost herein.¹ Complaint at ¶¶ 1-28 & Prayer for Relief t ¶¶ 1-2 (filed Nov. 15, 2024).

On December 19, 2024 Defendant filed an Answer on December 19, 2024, generally denying each statement of the Complaint. Answer (filed Dec. 19, 2024).

On January 28, 2025, Plaintiff served on Defendant Plaintiff’s Requests for Admission, Set One (“RFAs”).

On May 15, 2025, because Plaintiff failed to respond to those RFAs, Defendant moved for an Order Deeming RFAs admitted by Plaintiff.

On October 24, 2025, after giving all parties a full and fair opportunity to be heard, the Court Granted Plaintiff’s Motion to Deem RFAs admitted by Plaintiff. *See* Order at 2:3-4 (filed: Oct. 24, 2025) (“considering Begines’ s failure to respond to the RFAs and to this Motion,” the Court Orders that “RFAs No. 1-12 are DEEMED ADMITTED BY DEFENDANT.”)

¹ As established by Plaintiff’s Memorandum of Points & Authorities in support of the Motion, Plaintiff’s costs of suit sought here are \$746.84, an amount that the Court in the exercise of its discretion finds to be reasonable in all respects.

On January 14, 2026, Plaintiff filed this Motion for Judgment on the Pleadings in favor of Plaintiff and against Defendant on the grounds that Defendant's Answer fails to state facts sufficient to constitute a defense *and* based on the Order Deeming Plaintiff's Requests for Admissions Admitted entered on October 24, 2025. Motion at 1:22-27.

Plaintiff's Request for Judicial Notice is Granted

In support of this Motion, Plaintiff requests under Sections 452 and 453 of the California Evidence Code that the Court take judicial notice of: (1) Plaintiff's RFAs served on Defendant on January 28, 2025, and (2) the Court's Order of October 24, 2025 Deeming the RFAs admitted by Defendant. As it is proper for the Court under Sections 452 and 453 to take judicial notice of the record of this case, including the Court's Order of October 24, 2025 Deeming the RFAs admitted by Defendant, and as these documents are quite relevant to the present Motion for reasons that the Court will explain below, Plaintiff's Request for Judicial Notice of both these documents is **GRANTED**.

Legal Standards for C.C.P. Section 438 Motion

Code of Civil Procedure Section 438 governs a Motion for Judgment on the Pleadings.

Section 438(a) authorizes Plaintiff to bring this Motion for Judgment on the Pleadings where, as here, "the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint."

And Section 438(d) provides that "[t]he grounds for motion provided for in this section shall appear on the face of the challenged pleading *or* from any matter of which the court is required to take judicial notice. Where the motion is based on a matter of which the court may take judicial notice pursuant to Section 452 or 453 of the Evidence Code, the matter shall be specified in the notice of motion, or in the supporting points and authorities[.]" C.C.P. § 438(d) (emphasis added).

Analysis of this Section 438 Motion

Having reviewed the Complaint, the Court finds that it *does* state facts sufficient to constitute a cause of action for breach of contract by Plaintiff against Defendant including the damages sought.

Satisfying the requirement of C.C.P. Section 438(d), Plaintiff's Motion in both its Notice of Motion and in its supporting Memorandum of Points & Authorities does specify the matters which it requests the Court to take Judicial Notice on which this Motion is based, namely, (1) Plaintiff's RFAs to Defendant, and (2) the Court's October 24, 2025 Order Deeming those RFAs admitted by Defendant. Notice of Motion at 2:1-3; Memo. of Points & Authorities at 2:1-5:12. And for the reasons explained above, the Court here takes Judicial Notice of both those documents.

By force of the Court's October 24, 2025 Order, the Court finds that Defendant has admitted, *inter alia*, all the following specified facts:

- RFA No. 4: Defendant entered into the Loan Agreement with Plaintiff;
- RFA No. 5: Funds were deposited into bank account ending 1009 at Chae Bank pursuant to your Loan request to Plaintiff;
- RFA No. 6: Defendant is the account holder of bank account ending in 1009 at Chase Bank;
- RFA No. 9: All payments that Defendant submitted have been credited on the Subject Loan;
- RFA No. 10: Defendant is in default on the Subject Loan because Defendant failed to pay Plaintiff pursuant to the terms of the Loan Agreement;
- RFA No. 11.: Plaintiff performed all conditions required of it under the Loan Agreement; *and*
- RFA No. 12: The principal amount due of \$41,286.96 as set forth in the Complaint filed in this matter is correct.

Those admissions by Defendant to those RFAs are dispositive here because under Code of Civil Procedure 2033.410(a): "Any matter admitted in response to a request for admission is *conclusively established* against the party making the admission in the pending action, unless the court has permitted withdrawal or amendment of that admission under Section 2033.300." C.C.P. § 2033.410(a). And here, the Court has not permitted withdrawal or amendment of those admissions.

Hence, Defendant's admissions to the RFAs above conclusively establish that Defendant is liable for Plaintiff's Breach of Cause of action as pleaded in Plaintiff's Complaint because Defendant is deemed to have admitted each and every fact constituting each and every element of that Breach of Contract Cause of Action, including specifically that Defendant owes the principal amount of \$41,286.96 now.

As this Court has not and does not give leave to Defendant to amend or withdraw these admissions to these RFAs, "no contradictory evidence may be introduced." *Murillo v. Sup. Ct.* (2006) 143 Cal. App. 4th 730, 736. As no contradictory evidence may be introduced by Defendant, there is no reasonable possibility that the defect in Defendant's case could be cured by amendment of its Answer. And as there is no reasonable possibility that the defect could be cured by amendment, the Court, in the broad exercise of its discretion, may and hereby does **GRANT** this Motion for Judgment on the pleadings **WITHOUT LEAVE TO AMEND**. *Smiley v. Citibank* (1995) 11 Cal. 4th 138, 164 n. 18.

Defendant does not argue otherwise. Indeed, Defendant has not opposed the Motion at all, which the Court views as Defendant conceding the Motion in its entirety. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated “as an admission that the motion is meritorious”) (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).

Moreover, in light of this Order Granting Plaintiff’s Motion without leave to amend, Plaintiff is entitled to Judgment *now* in the amount of damages sought in the Complaint of \$41,286.96 on the principal debt, plus costs of suit in the amount of \$746.84. C.C.P. § 438(h)(3). So the total amount that Plaintiff is entitled to now is \$42,033.80.

Accordingly, **JUDGMENT IS ENTERED** now in favor of Plaintiff and against Defendant for the total amount of \$42,033.80.

Conclusion & Order

For the reasons set forth above, Plaintiff’s Motion for Judgment on the pleadings in the total amount of **\$42,033.80** in favor of Plaintiff Onpath Federal Credit Union and against Defendant Emily Begines is **GRANTED WITHOUT LEAVE TO AMEND**.

SO ORDERED.

Date: August 28, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Judgment

Plaintiff's Motion for Judgment on the Pleadings in favor of Plaintiff Onpath Federal Credit Union and against Defendant Emily Begines came regularly for a hearing by the Court on August 28, 2026, on notice duly given. After reviewing all the papers and giving counsel for all parties the opportunity to be heard, the Court **GRANTS THE MOTION WITHOUT LEAVE TO AMEND.**

ACCORDINGLY, IT IS SO ORDERED, ADJUDGED, AND DECREED THAT:

Plaintiff Onpath Federal Credit Union have and recover now from Defendant Emily Begines a **Total Judgment in the amount of \$42,033.80**, which equals damages of \$41,286.96 plus costs of suit of \$746.84.

Date: August 28, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 2

Case Name: *Shan Allen Laliberte, et al. v. F.S. Trucking Company, et al.*

Case No.: 25CV472081

See ORDER above. (At the request of the moving party, this Motion is OFF CALENDAR.)

Line 3

Case Name: *Rhene Cruz, et al. v. General Motors, LLC, et al.*

Case No.: 22CV393759

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiffs Rhene Cruz and Ricardo Cruz move under a signed Civil Code Section 998 Offer to Compromise (“998 Offer”) and the Song-Beverly Consumer Warranty Act (“SBA”), California Civil Code § 1794(d) for an award of attorneys’ fees, costs, and expenses in the total amount of \$33,034.63, consisting of: (1) \$21,877.50 in attorneys’ fees; (2) a 1.35 multiplier enhancement of \$7,657.13, and (3) \$3,5000.00 for Plaintiff’s counsel to review Defendant’s Opposition, draft the Reply, and attend the hearing on this Motion. Notice of Motion (the “Motion”) at 2:4-11 (filed: Jan. 12, 2026).

This Motion is made on the grounds that Plaintiffs are the prevailing party under the SBA claims at issue in this lawsuit; hence, Plaintiffs are entitled to statutory attorneys’ fees, costs, and expenses under Section 1794(d). *Id.* at 2:12-14.

The Motion came on for hearing on August 28, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Background

A. Factual & Procedural History

On August 16, 2020, Plaintiffs purchased a 2020 Chevrolet Tahoe. The vehicle was equipped with a 5.3L V8 355hp 383ft. lbs. engine and 6-Speed Automatic transmission and came with Defendant’s express warranty. During the warranty period, the vehicle suffered from transmission defects that substantially impaired its use, value, and safety. Declaration of Dhara Chandy In Support of Motion (“Chandy Decl.”) at ¶¶ 3-5.

Plaintiffs presented the vehicle to Defendant’s authorized repair facilities on multiple occasions for repair of these defects. Despite these repair attempts, Defendant was unable to conform the vehicle to the applicable express warranties within a reasonable number of attempts. Plaintiffs made demands upon Defendant to repurchase or replace the vehicle pursuant to the Song-Beverly Consumer Warranty Act, but Defendant refused. Motion at 4:17-21.

Plaintiffs filed their Complaint on January 26, 2022, asserting four causes of action under the Song-Beverly Consumer Warranty Act. Defendant filed its Answer on March 14, 2022. The case proceeded through discovery, case management conferences, mediation

on May 1, 2024, and trial preparation over approximately three years.

On February 5, 2025, GM served a Section 998 Offer for \$130,000 in exchange for the subject vehicle plus prejudgment interest and attorneys' fees, costs, and expenses. On February 18, 2025—the day of trial—GM served a second Section 998 offer in the amount of \$165,000.00 in exchange for the subject vehicle plus pre-judgment interest in the amount of \$50,584.95, in the total amount of \$215,584.95, plus attorneys' fees, costs, and expenses. The February 18, 2025 offer document provides that:

- “at Plaintiffs’ election, Plaintiffs’ attorney’s fees, expenses and costs that have been reasonably incurred pursuant to Civ. Code, § 1794, subd. (d) may be determined by the Court via noticed motion.” And
- “For purposes of any such motion, GM will agree that Plaintiff is the prevailing party.”

Chandy Decl., Ex. 3 ¶ 3. (GM’s CCP § 998 Offer of Compromise) (dated: Feb. 18, 2025). Plaintiffs accepted that offer that same day.

Counsel filed its Notice of Settlement on February 18, 2025, the same day Plaintiffs accepted GM’s § 998 Offer. Under Cal. Rules of Court, rule 3.1385(b), an automatic dismissal would occur 45 days later, on April 4, 2025, if no Request for Dismissal were filed.

Plaintiffs’ Motion for attorneys’ fees was electronically filed on January 12, 2026, approximately eleven months after the Notice of Settlement was filed and nine months after the automatic dismissal deadline under rule 3.1385(b).

B. Plaintiffs’ Fee Request

In this Motion, Plaintiffs seek \$21,877.50 in lodestar attorneys’ fees for 43 hours of attorney and staff time through settlement, a 1.35 multiplier totaling \$7,657.13, and anticipated fees for opposition and hearing work initially noticed at \$3,500 but increased in the reply papers to \$3,885, for a total claimed recovery of \$33,034.63. GM opposes, arguing the motion is untimely and, if considered on the merits, should be reduced to \$6,887.25 at most.

II. Regarding timeliness, the Court finds Good Cause to extend the deadline under Rule 3.1702(d) and reach the merits of the Motion.

A. Legal Standard

A motion claiming attorney’s fees must be served and filed within the time for filing a notice of appeal. Once a qualifying terminating event is identified, that deadline is mandatory, and a late motion may be denied as untimely. In the context of a Section 998 settlement, an automatic dismissal under Rule 3.1385(b) is sufficient to trigger the rule 3.1702 deadline even without a separately entered judgment or signed dismissal order.

However, good cause to extend the rule 3.1702 deadline is flexible and may turn on good faith, absence of gamesmanship, and lack of prejudice to the opposing party. (*Wash v. Banda-Wash*, No. FO85028M (Cal. Ct. App. 2025).)

B. Analysis

The Court finds that the motion is technically untimely under *Hatlevig v. Gen. Motors LLC* (2026) 118 Cal.App.5th 644. In *Hatlevig*, the Court of Appeal held that an automatic rule 3.1385(b) dismissal after settlement triggers the rule 3.1702 fee-motion deadline even without a separately entered judgment or signed dismissal order. The facts here are materially identical to *Hatlevig*: a Song-Beverly case, a Section 998 offer, acceptance on the day of trial, and a Notice of Settlement filed with the court, followed by the prospect of an automatic rule 3.1385(b) dismissal 45 days later if no Request for Dismissal is filed. Under *Hatlevig*, the automatic dismissal deadline of April 4, 2025, triggered the rule 3.1702 clock. This Motion filed on January 12, 2026, nearly one year after the Notice of Settlement and approximately nine months after the automatic dismissal deadline, is untimely under the 180-day borrowed appeal period.

Plaintiffs contend that rule 3.1702's deadline is keyed to the time for filing a notice of appeal, and because dismissals following § 998 settlements are ministerial and non-appealable under *H.D. Arnaiz, Ltd. v. County of San Joaquin*, no trigger event ever occurred. The first premise is correct: rule 3.1702 borrows the appeal period. But the second premise overstates *H.D. Arnaiz*. While *H.D. Arnaiz* addresses appealability and concludes that ministerial settlement dismissals are not appealable, it does not squarely hold that a ministerial settlement dismissal can never function as the terminating event for purposes of rule 3.1702. *Hatlevig* answers the specific question presented: a settlement termination that finally disposes of the action is sufficient to trigger the fee-motion deadline even if no formal judgment was entered.

Plaintiffs further argue that *Hatlevig* did not address the plain-text argument and therefore does not foreclose it. This somewhat understates *Hatlevig*'s reach. While precision about the scope of precedent is appropriate, *Hatlevig* did decide the dispositive issue: whether an automatic settlement dismissal suffices to trigger rule 3.1702. The fact that *Hatlevig* may not have parsed every variant of the textual objection does not make its holding noncontrolling on materially identical facts.

Plaintiffs also argue that *Hatlevig*'s functional approach conflicts with *Meinhardt v. City of Sunnyvale* (2024) 16 Cal.5th 643, which prohibits construing non-judgment filings as judgments to dismiss a fee motion as untimely. The Court does not see a conflict. *Meinhardt* is a California Supreme Court decision emphasizing textual rigor in appeal-time rules, but it did not address the specific post-Section 998, automatic-dismissal context addressed by *Hatlevig*. A functional-equivalence approach in that narrow context—where the settlement itself has been accepted and the dismissal is the automatic consequence of settlement and settlement notice—is not necessarily inconsistent with *Meinhardt*'s textualism. The question is not whether courts may invent a trigger out of whole cloth, but whether a settlement-ending dismissal is the operative terminating event contemplated by the existing rules.

C. The Court finds Good Cause to extend the deadline

All that said, although the motion is technically untimely, Cal. Rules of Court, rule 3.1702(d), permits the Court to extend the deadline for good cause. (*Wash v. Banda-Wash*, No. Fo85028M (Cal. Ct. App. 2025).) The Court finds good cause to extend the deadline and reach the merits.

First, there is no indication of gamesmanship here. The settlement itself expressly contemplates this noticed-fee Motion. GM’s own February 18, 2025 Section 998 offer expressly offered Plaintiffs this choice: (a) GM will “pay Plaintiff’s attorney fees, expenses at costs in the amount of \$20,000” or (b) “at Plaintiffs’ election, Plaintiffs’ attorney’s fees, expenses and costs that have been reasonably incurred pursuant to California Civil Code § 1794(d) may be determined by the Court via noticed motion.” Chandy Decl., Ex. 3 ¶¶ 2-3.

Here, Plaintiff’s counsel chose choice (b)—for fees to be determined by this noticed Motion. This choice in accordance with the plain terms of GM’s offer undermines any argument that Plaintiffs have engaged in tactical abandonment or sandbagging of the fee claim. Rather, Plaintiffs affirmatively elected to pursue fees by noticed motion rather than accepting the offered \$20,000, a choice that only makes sense if the fee motion was contemplated as part of the settlement process.

Second, the timing dispute was genuinely unsettled from the perspective of April 2025. *Hatlevig* was decided in 2026, after the alleged trigger event. Plaintiffs did not have fair notice in April 2025 that an automatic rule 3.1385(b) dismissal would be treated as the event starting the rule 3.1702 clock. While applying *Hatlevig* to declare this Motion late is appropriate, yet refusing any extension despite that lack of notice would effectively impose a shortened deadline retroactively. And to impose a shortened deadline retroactively is not fair.

Third, GM identifies no concrete prejudice from the delay beyond having to oppose the Motion on the merits. The underlying fee claim was preserved by the settlement itself, which expressly provided for fee recovery. The only prejudice is the procedural burden of responding to a late motion, which is the ordinary consequence of a Court granting an extension.

To be sure, the delay in filing here was substantial: nearly eleven months after the April 2025 trigger date. But substantial delay alone does not preclude relief where good cause is shown. Taking into account the settlement’s express contemplation of a later noticed fee motion, the absence of gamesmanship, and the genuine legal uncertainty before *Hatlevig* together, and in the broad exercise of its discretion, the Court finds Good Cause under the flexible standard of rule 3.1702(d) to extend the deadline and reach the merits of the Motion now.

III. Plaintiffs as the prevailing parties are entitled to their reasonable attorneys’ fees and costs under Civil Code Section 1794(d).

A. Legal Standard

Under California Civil Code section 1794(d), a prevailing buyer in an action brought under the Song-Beverly Consumer Warranty Act shall be allowed by the court reasonable attorney's fees and costs. (Civ. Code, § 1794, subd. (d).) The prevailing party in a § 998 settlement is treated as prevailing for purposes of any fee-shifting statute.

B. Analysis

Plaintiffs are prevailing buyers under Civil Code Section 1794(d). They filed their Complaint on January 26, 2022, alleging four Song-Beverly Consumer Warranty Act causes of action arising from transmission defects in a 2020 Chevrolet Tahoe. After litigating through discovery, mediation, and trial preparation, they accepted Defendant's § 998 offer in the amount of \$165,000.00 in exchange for the Subject Vehicle plus pre-judgment interest in the amount of \$50,584.95, in the total amount of \$215,584.95, plus attorneys' fees, costs and expenses GM does not materially dispute that section 1794(d) is the governing fee statute if the motion is procedurally proper. The Court finds Plaintiffs are prevailing buyers entitled to a mandatory reasonable fee award under Section 1794(d). (Civil Code § 1794(d).)

IV. Lodestar Calculation: On the Reasonableness of the hours & rates of the attorneys' fees sought here.

A. Legal Standard

The standard method for calculating a reasonable attorney's fee is the lodestar method: multiplying the number of hours reasonably expended by a reasonable hourly rate prevailing in the community for similar work. (*Mikhaeilpoor v. BMW of North America, LLC*, No. B293987 (Cal. Ct. App. 2020).) The moving party bears the burden of submitting evidence, typically through counsel declarations and contemporaneous billing records, to support the hours and rates claimed. (*Id.*) Once a prima facie showing is made, the burden shifts to the opposing party to make specific objections to the time entries or rates. The Court may then adjust the lodestar upward or downward. The Court must award only fees for time that was actually and reasonably incurred. (Civil Code § 1794(d).)

B. Plaintiffs make a prima facie showing

Here, Plaintiffs made a prima facie showing by submitting contemporaneous billing records. Exhibit 1 of the Chandy Declaration is a true and correct copy of SLP's contemporaneous billing records. Plaintiffs claim \$21,877.50 in attorneys' fees for 43 hours of work. Chandy Decl., Ex. 1. The hourly rates range from \$285.00 to \$650.00 per hour.

In its Opposition, GM does not challenge the hourly rates sought here. But that concession is limited to the rates themselves. GM does object, with some force and persuasiveness, to the hours billed, the staffing decisions, and the nature of the work performed.

C. On GM's Objections on Plaintiffs' Counsel Use of Litigation Templates and Inefficiencies

GM contends that in this case Plaintiffs' counsel recycled templated documents in the Complaint, discovery responses, discovery requests, objections to deposition notices, expert designation, motions in limine, notices to appear, and trial documents. GM supports this objection with side-by-side comparisons in the Keshishian declaration. GM further states that on "February 18, 2025, Counsel served various 'trial documents,' including an exhibit list, jury list, jury instructions, and statement of the case. Counsel's trial documents are based on templates that Counsel has filed against GM in Song-Beverly cases over and over again" Decl. of Natalie Keshishian in Opp'n to Mot. ("Keshishian Decl.") at ¶ 14 & Exs. Q and R thereto. Quite true.

This evidence is sufficient to justify scrutiny and some reduction of the billing entries for templated work, but is not sufficient to justify wholesale rejection of all claimed hours. Template use can reflect efficiency, and efficiency is not a basis to deny fees under section 1794(d). (Civil Code § 1794(d).) At the same time, section 1794(d) compensates only time actually and *reasonably* incurred. (*Id.*) Where side-by-side comparisons show, as they do here, that large portions of a filing were substantially recycled, the Court may reduce billed drafting time if the claimed hours appear disproportionate to the customization required.

Plaintiffs respond that many tasks still required case-specific adaptation to this vehicle, this repair history, this settlement posture, and this trial setting, as reflected in work on a repair chronology documenting the vehicle's defects and repair history, their Motions in Limine and supporting documents, and trial documents, including Exhibit List, Jury Instructions, and Statement of the Case.

Taking all this into account, after careful review of the voluminous hundreds and hundreds of pages submitted by the papers in support and opposition to this Motion, and in the broad exercise of its discretion, the Court finds that while GM's template evidence proves some overbilling risk and warrants some reduction of the fees sought, not that all templated work is non-compensable.

D. On GM's Objection that Plaintiffs overstaffed this case with too many attorneys

GM contends that despite billing just 43 hours, **18** different timekeepers billed on this matter. Plaintiffs reply that "[o]nly 6 attorneys accounted for 25.8 hours out of the 43.0 total hours billed (i.e., approximately 60%) with other attorneys performing non-duplicative tasks" Reply at 3:19-20.

GM's headcount objection is less persuasive than its template argument. The relevant inquiry is actual duplication—whether two lawyers billed for the same hearing, conference, or drafting task in a redundant way. Plaintiffs' showing that only six attorneys performed the bulk of the work, with others handling discrete nonduplicative tasks, undermines the force of GM's abstract headcount objection. GM's papers do not identify

substantial examples of redundant billing by multiple attorneys for overlapping work.

Accordingly, in the broad exercise of its discretion, the Court here will not reduce the fees sought simply because 18 timekeepers appeared on the file.

E. On GM’s objection that Plaintiffs are seeking an award of fees for nonlawyer clerical and administrative tasks

GM specifically challenges 2.8 hours of clerical/administrative tasks billed at attorney rates. The described tasks—scheduling, cover sheets, assembling and filing—are ordinarily *not* compensable at attorney rates under California’s reasonableness standard in the context of awarding reasonable attorneys’ fees. Simply put, clerical tasks are not attorney work. Accordingly, in the broad exercise of its discretion, the Court deducts those 2.8 hours from the lodestar sought by Plaintiffs here.

F. On GM’s objection that Plaintiffs are seeking an award of fees for Case-Management and administrative work

GM objects to time spent on case-management conferences, trial-setting conferences, posting jury fees, and related administrative work. These objections justify only limited reduction. The record reflects that those events occurred, including preparing for and attending Case Management Conference, the Trial Setting Conference, revising and finalizing Plaintiffs’ Notice of Posing of Jury fees, and settlement-offer activity that productively resulted on February 18, 2025, on the day of trial, GM making a second Section 998 offer in the amount of \$165,000.00 that settled this case. Chandy Decl. at ¶¶ 14-43. In the broad exercise of its discretion, the Court finds that in this Song-Beverly case litigated to the day of trial, those categories are generally compensable attorney work.

G. Calculation of Adjusted Lodestar

Weighing all these competing considerations discussed above, after reviewing all the voluminous papers, evidence, and exhibits for and against the award of attorneys’ fees sought here, and in the broad exercise of its discretion, the Court hereby reduces the requested merits lodestar by 25 percent to account for the proven clerical time (2.8 hours) and the partially persuasive template objection, while rejecting the more sweeping reductions that GM seeks. This 25 percent reduction reflects both the demonstrated clerical-task problem and the reality that some templated work required less customization than Plaintiffs acknowledge, without accepting GM’s extreme position that all template-based billing is non-compensable.

Accordingly, applied to the claimed \$21,877.50 in attorneys’ fees for 43 hours of work, a 25 percent reduction yields an award of **\$16,408.13** in reasonable attorneys’ fees that the Court awards to Plaintiffs here.

V. In the broad exercise of its discretion, the Court does not award a multiplier enhancement in this Song-Beverly case.

A. Legal Standard

A multiplier is permissible but discretionary. (*Mikhaeilpoor v. BMW of North America, LLC*, No. B293987 (Cal. Ct. App. 2020).) The Court may deny enhancement in a routine Song-Beverly case where contingent risk is reduced by mandatory fee shifting and the enhancement would double-count factors already reflected in the lodestar. (*Id.*) Contingency risk is reduced in fee-shifting contexts because the statute guarantees recovery of a reasonable fee. (*Id.*)

B. Analysis

In this case, Plaintiffs seek a 1.35 multiplier based on the result obtained for Plaintiffs, the risks undertaken by counsel in prosecuting this matter on a contingency basis, and the delay in payment of fees. In support of their request to apply a multiplier, Plaintiffs emphasize that they recovered \$165,000.00 in exchange for Subject Vehicle plus pre-judgment in the amount of \$50,584.95 in the total amount of \$215,584.95 in restitution.

The Court finds that this case is a routine, non-novel Song-Beverly case about transmission defects in a single vehicle, albeit one that was litigated to the day of trial. The result was strong—indeed favorable—with a total settlement package exceeding \$215,000. However, the strength of the result is adequately reflected in the compensable lodestar itself and does not independently justify enhancement in this case. Moreover, mandatory fee shifting under section 1794(d) reduced the contingent risk that counsel faced as compared with a pure contingency case with no guaranteed fee recovery. Awarding a contingency enhancement on top of already accepted market rates would risk the double-counting concerns identified in the relevant authorities. (*Mikhaeilpoor v. BMW of North America, LLC*, No. B293987 (Cal. Ct. App. 2020).)

Weighing all these competing considerations, after reviewing all the voluminous papers, evidence, and arguments for and against the application of a multiplier here, the Court denies the requested 1.35 multiplier and awards no multiplier at all.

VI. On the award of fees-on-fees here

A. Legal Standard

Fees incurred litigating the fee motion are recoverable. (*Frym v. 601 Main St. LLC* (2022) 82 Cal.App.5th 613.) But when a movant substantially increases the amount of fees sought in its reply papers without prior notice in the moving papers, fairness requires that the increased amount not be awarded absent an opportunity for the opponent to respond. (*Id.*)

B. Analysis

The moving papers noticed \$3,500.00 in estimated fees to read and reply to the opposition. But Plaintiffs' reply later sought \$3,885 in fees-on-fees for reply and hearing work. That's an eleven percent increase,² which the Court finds to be a substantial increase.

When a movant substantially increases the amount of fees sought in reply without prior notice in the moving papers, fairness requires that the increased amount *not* be awarded absent an opportunity for the opponent to respond. (*Frym v. 601 Main St. LLC* (2022) 82 Cal.App.5th 613.) Plaintiffs should have noticed the increased amount in the moving papers or sought leave to amend the fee request.

Accordingly, in the broad exercise of its discretion, the Court hereby caps and awards recoverable fees-on-fees at the noticed amount of **\$3,500**, which properly accounts for work on the opposition and reply. Because the timeliness issue required substantial reply work and the opponent has had adequate notice and opportunity to respond to the \$3,500 amount sought, this award of \$3,500 for fees-on-fees here is reasonable.

VII. On the award of reasonable costs and expenses here

A. Analysis

While the title of this Motion is "For Attorneys' Fees, Costs, and Expenses," the quantified request specified in the moving papers is fee-only. There is no separately itemized memorandum of costs or discrete nonfee expense request in the moving papers or in the supporting Declaration or supporting Exhibits. Section 1032(b) and section 1033.5 provide the framework for awarding costs, but those sections require itemization, and the moving papers do not provide it here.

Accordingly, the Court **DENIES** any separate award of costs or expenses beyond the attorney-fee amounts addressed above.

VIII. Conclusion & Order

For all the reasons explained in detail above, and in the broad exercise of its discretion, the Court **GRANTS IN PART** and **DENIES IN PART** Plaintiffs' Motion for Attorneys' Fees, Costs, and Expenses as follows. Specifically, the Court **ORDERS**:

- The Court awards Plaintiffs attorneys' fees in the amount of **\$16,408.13**, reflecting a 25 percent reduction from the claimed lodestar to account for clerical tasks and template overbilling.

² $3,855 - 3,500 = 355$. $355 \div 3,500 = 0.1014$. $0.1014 \times 100 = 10.14\%$.

- In addition, the Court awards fees-on-fees in the amount of **\$3,500.00**, the amount noticed in the moving papers.
- The Court **DENIES** the requested 1.35 multiplier enhancement.
- The Court **DENIES** any separate award of costs or expenses because the moving papers did not itemize or provide any evidence of any costs and expenses.
- Accordingly, the Court hereby awards Plaintiffs a total award of **\$19,908.13** for their reasonable attorneys' fees in this case, which equals the reduced lodestar amount of \$16,408.13 plus the fees-on-fees of \$3,500.00 awarded above.
- **GM will pay Plaintiffs \$19,908.13 for their reasonable attorneys' fees in this case within 30 days of today.**

SO ORDERED.

Date: August 28, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 4

Case Name: *Alpha Anderson v. Alta Mesa Cemetery Association, et al.*

Case No.: 24CV442364

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Alpha Anderson (“Plaintiff”) moves under Code of Civil Procedure Section 473(b) and California Rules of Court 3.1385(2) and 3.1202 to reinstate the case on the docket and to set a trial date. Notice of Motion (the “Motion”) at 1:23-2:3 (filed: Jan. 20, 2026).

The Motion came on for hearing on August 28, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Resolution of this Motion is straightforward.

Chronology & Procedural Posture

This action arises from a slip and fall that occurred on or about July 3, 2022, while Plaintiff was lawfully on the Premises as an invitee to Defendants. Plaintiff failed the Complaint on July 2, 2024. California Rule of Court 3.110(b) requires “[t]he Complaint must be served on all named defendants and proofs of serve on those defendant must be filed with the court within 60 days after the filing of the complaint.” C.R.C. 3.110(b). When Plaintiff failed to file a proof of service on Defendants by the 60-day deadline, the Court gave Plaintiff multiple extensions to file the required proof of service, including by setting multiple Order to Show Cause (“OSC”) hearings to dismiss the case for failure to serve on February 7, 2025 and July 2, 2025.

Despite Plaintiff note failing the required proof of service by the second OSC of July 2, 2025, Judge Hayashi at that July 2, 2025 graciously extended for the third time Plaintiff’s time to do so by continuing the OSC to October 29, 2025. When Plaintiff’s counsel appeared at the October 29, 2025 hearing and advised Judge Parrett, who in the interim had been assigned as the Case Manager of this case, that Plaintiff still—after two OSCs and over a year after the Complaint was filed—had neither served nor filed the required proof of service on Defendants, Judge Parrett right then dismissed this case, without prejudice, for Plaintiff’s failure to serve Defendants. Minute Order (filed: Oct. 29, 2025).

Evidently having gotten the attention of Plaintiff’s counsel at the October 29, 2025 hearing, Plaintiff’s counsel the very next day on October 30, 2025 served all Defendants and filed the required Proof of Service the following day on October 31, 2025. Proof of

Service of Summons (filed: Oct. 31, 2025).

After filing an ex parte application on November 4, 2025, which the Court denied on November 6, 2025 because *emergency* ex parte relief was not warranted under C.R.C. 3.1202(c), Plaintiff next filed the present Motion on January 20, 2026, 83 days after the October 29, 2025 dismissal, well within the six-month statutory window for relief under Code of Civil Procedure section 473(b).

Legal Standard on Section 473(b) Motion

California Code of Civil Procedure section 473(b) authorizes the court to relieve a party from a judgment, dismissal, order, or other proceeding taken against that party through mistake, inadvertence, surprise, or excusable neglect. C.C.P. § 473(b). The application must be made within a reasonable time and, in no case, exceeding six months after the judgment, dismissal, order, or proceeding was taken. *Id.* California law strongly favors resolution of cases on their merits rather than by default or dismissal. *Elston v. City of Turlock* (1985) 38 Cal. 3d 227, 233.

Analysis of the Section 473(b) Motion

I. Plaintiff meets all statutory requirements for relief under Section 473(b) here.

After carefully reviewing the moving papers and the record, and in the broad exercise of its discretion, the Court finds:

- (1) Plaintiff's motion was filed on January 20, 2026, within six months of the October 29, 2025 dismissal, satisfying the timeliness requirement of section 473(b); and
- (2) Plaintiff's counsel Irving Pedroza has submitted a declaration establishing the grounds for relief by attesting that the October 29, 2025 dismissal was his fault because it resulted from his mistake, inadvertence, surprise, or neglect.

A. Attorney Fault Is Established

With commendable candor, Plaintiff's counsel Pedroza declares under oath that: "The dismissal of this action resulted solely from attorney inadvertence on my part." Decl. of Irving Pedroza ¶ 7 (filed: Jan. 20, 2026). Specifically, he explains that "we were not able to ensure that service of the complaint was completed within the time ordered by the Court following the Court's continuance of the OSC" *Id.* And that: "This failure was not intentional or gamesmanship, but rather an oversight attributable entirely to my office and me" *Id.*

Moreover, counsel admits that "[a]fter the Court continued the OSC on July 7, 2025, my office reasonably believed that service would not be contested during that period. While settlement discussions were ongoing, service was not completed prior to

the October 29, 2025 hearing date. We mistakenly failed to calendar a hard internal deadline to complete service notwithstanding the continued OSC, which resulted in the Court dismissing the action without prejudice.” Decl. of Irving Pedroza ¶ 5. The Court accepts that that is exactly what happened here.

Those declarations by attorney Pedroza establish that this dismissal for failure to serve resulted from attorney mistake, inadvertence, and excusable neglect. The failure to complete service while pursuing settlement discussions, combined with the calendaring oversight, constitutes attorney fault warranting relief under section 473(b).

B. Plaintiff sought this Section 473(b) relief promptly.

Attorney Pedroza further declares that: “Upon learning of the dismissal, I immediately began preparing this instant motion for relief” Decl. of Irving Pedroza ¶ 6 and that “No delay occurred once the dismissal was discovered.” *Id.* The Court accepts that as true.

Moreover, Plaintiff’s counsel acted quite promptly to remedy his mistake and prosecute this action by, after Judge Parrett got his attention at the October 29, 2025 hearing, finally serving all Defendants in this matter the next day on October 30, 2025, and by filing the Proof of Service of Summons on all Defendants the day after that on October 31, 2025.

This prompt action demonstrates that the failure to serve was not willful neglect but rather the product of attorney oversight during settlement negotiations.

C. Defendants will suffer no unfair prejudice if this relief is granted.

Attorney Pedroza asserts that “Defendants will suffer no prejudice if relief is granted,” Decl. of Irving Pedroza ¶ 9, because “[t]he dismissal was without prejudice, no trial date has been set, no discovery cutoff has passed, and Defendants have not changed their position or incurred any detriment in reliance on the dismissal.” *Id.* The Court agrees. The dismissal without prejudice occurred on October 29, 2025, and Defendants were served the very next day. The brief period between dismissal and service, combined with the absence of any reliance by Defendants on the dismissal, supports the conclusion that Defendants will not be prejudiced by reinstatement.

D. California Law favors resolution of this case on its merits.

California law strongly favors resolution of cases on their merits. *Elston* (1985) 38 Cal. 3d 227 at 233, *supra*.

The failure to serve Defendants in this case resulted from counsel's oversight during settlement discussions, not from any lack of diligence by Plaintiff. Defendants were served promptly after the dismissal. Under these circumstances, the strong public policy favoring adjudication on the merits weighs heavily in favor of granting relief.

Defendants do not argue otherwise. Indeed, Defendants have not opposed the Motion at all, which the Court views as Defendants conceding the Motion in its entirety. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated “as an admission that the motion is meritorious”) (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).³

Conclusion & Order

For the foregoing reasons, Plaintiff’s Motion for relief under Code of Civil Procedure section 473(b) is **GRANTED**. Specifically, it is **ORDERED** that:

1. The October 29, 2025 dismissal of this action is **SET ASIDE**.
2. This case is **REINSTATED** on the Court's active docket.
3. Defendants will now answer or otherwise respond to the Complaint as permitted, and within the time period permitted, by the Code of Civil Procedure.
4. An **Initial Case Management Conference**, where counsel for all parties must appear, is now set **for October 15, 2026 at 2:00 PM in Department 16**.⁴
5. All parties shall comply with the Case Management Conference requirements set forth in the California Rules of Court and the Santa Clara County Superior Court local rules.
6. Plaintiff will give Notice to all Defendants of this Order within 5 days of today.

SO ORDERED.

Date: August 28, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

³ To be sure, as the action was dismissed on October 29, 2025, and as they have not yet appeared in this action, Defendants were not *required* to oppose this Motion. But the facts remains that they have not opposed it, which the Court can and does view as Defendants conceding this Motion.

⁴ While Plaintiff also asked the Court in its Motion to “set a trial date” (Motion at 2:2-3), the Court will not do so quite yet but rather will allow discovery to proceed in an orderly and normal course first.

Line 5

Case Name: *Santa Clara Valley Water District v. Mildred Peck, et al.*

Case No.: 25CV482807

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Santa Clara Valley Water District (“Valley Water” or “Plaintiff”) moves under Code of Civil Procedure Section 1255.410 *et seq.* for prejudgment possession of the real property, identified as Assessor’s Parcel Number (“APN”) 472-12-001, located within the City of San Jose (the “Property”), that is the subject of this eminent domain proceeding. Notice of Motion (the “Motion”) at 2:4-13 (filed: March 4, 2026).

This Motion is made on the grounds that Plaintiff, as an entity with the power of eminent domain, is authorized to take possession of real property for the purposes set forth in the Complaint in this action, namely, for the construction and operation of the Coyote Creek Flood Protection Project (the “Project”), which consists of improvements to reduce the risk of flooding along approximately nine miles of Coyote Creek, including flood walls and headwalls to redirect flood flows, berms to contain or redirect flow flows, ground-level barriers to contain floodwaters, storm drain backflow prevention devices to prevent backflows from Coyote Creek to stress during high water flows, as well as vegetation removal for accession during construction. *Id.* at 22:14-21.

The Motion came on for hearing on August 28, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

As an initial matter, Plaintiff’s accompanying Request for Judicial Notice in support of this Motion is **GRANTED** in all respects. Accordingly, under Evidence Code Sections 450, 452(d) and (h), and 453, the Court takes Judicial Notice of:

1. Plaintiff’s Complaint in Eminent Domain, filed on December 2, 2025, in the Santa Clara County Superior Court in this matter, including all exhibits thereto; and
2. Plaintiff’s Notice of Deposit of Probable Just Compensation, filed on December 26, 2025 in the Santa Clara County Superior Court in this matter, including all exhibits thereto.

Next, after reviewing all moving papers and the record, and in the broad exercise of its discretion, the Court finds that Plaintiff has satisfied all the requirements for and is entitled to prejudgment possession of the Property now. Specifically, the Court finds that:

1. Plaintiff is entitled to take the Property by eminent domain;

2. Plaintiff has made the required deposit of probable acquisition for acquisition of the Property in compliance with Code of Civil Procedure Section 1255.010;
3. There is an overriding need for Plaintiff to possess the Property before final judgment; and
4. Delaying possession by Plaintiff will create a substantial hardship for Plaintiff and the public, which would be much larger than the hardship that Defendant would face if early possession were granted now.

The Motion is well supported by the law and the facts and the evidence, including by the Declaration of Madhu Thummaluru in Support of Plaintiff's Motion for Prejudgment Possession, which the Court has reviewed in detail and finds to be reasonable in all respects.

Defendants do not argue otherwise. Indeed, Defendants have not opposed the Motion at all, which the Court views as Defendants conceding the Motion in its entirety. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated "as an admission that the motion is meritorious") (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): "A failure to oppose a motion may be deemed a consent to the granting of the motion." CRC Rule 8.54(c).

Moreover, under Code of Civil Procedure Section 1255.410(d), because Defendants have not opposed this Motion and because the Court has now found above each of the following—(1) Plaintiff is entitled to take the Property by eminent domain and (2) Plaintiff has made the required deposit under Section 1255.010, *supra*—the Court is *required* to make this order for prejudgment possession in favor of Plaintiff now. C.C.P. § 1255.410(d).

Accordingly, the Court **GRANTS** the Motion of Plaintiff Santa Clara Valley Water District to take prejudgment possession now of the Property.

SO ORDERED.

Date: August 28, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 6

Case Name: *J.C. v. Watchtower Bible and Tract Society of New York, Inc., et al.*

Case No.: 22CV407932

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant West Congregation of Jehovah’s Witnesses, San Jose, CA, Inc. (“West Congregation”) moves under Code of Civil Procedure Section 437c for summary judgment or in the alternative summary adjudication of Plaintiff J.C.’s (“Plaintiff”) Second Amended Complaint. Notice of Motion (the “Motion”) at 1:28-2:3 (filed: Jan. 26, 2026). This Motion is made on the following grounds:

1. There is no triable issue of material fact as to Plaintiff’s claims against West Congregation because West Congregation did not owe Plaintiff a duty of care and therefor West Congregation is entitled to summary judgment.
2. There is no triable issue of material fact as to Plaintiff’s third cause of action for negligent hiring, supervision, or retention and thus, West Congregation is entitled to summary adjudication as a matter of law.
3. There is no triable issue of material fact as to Plaintiff’s fourth cause of action for negligence and thus, West Congregation is entitled to summary adjudication as a matter of law.

Id. at 2:10-18.

The Motion came on for hearing on August 28, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Fact Allegations & Procedural Posture

Plaintiff, J.C.,⁵ brings this Second Amended Complaint (“SAC”) against Defendants Watchtower Bible and Tract Society of New York, Inc. (“Watchtower”), West Congregation of Jehovah’s Witnesses, San Jose, CA, Inc. (“West Congregation”), Sean A. Mackey (“Mackey”), and Does 4 through 60 (collectively, “Defendants”) for incidents of childhood sexual assault perpetrated by Mackey against Plaintiff, while Plaintiff was a

⁵ J.C. is not Plaintiff’s actual name, but a fictitious name used to protect her privacy. (See SAC, ¶ 5.)

minor. (SAC, ¶¶ 1-2.)

Watchtower is a religious nonprofit corporation that supervised and exercised control over Plaintiff's abuser, Mackey. (SAC, ¶¶ 6-7.) West Congregation (collectively with Watchtower, "Church Defendants") is a nonprofit California corporation, owned, controlled, directed, and operated by Watchtower, which included the church, West Congregation, that Plaintiff attended and the property where the unlawful acts of childhood sexual assault occurred. (*Id.* at ¶ 11.)

Watchtower was responsible for finalizing the appointments of Elders and Ministerial Servants, including Mackey, from its headquarters in New York. (SAC, ¶¶ 7-8, 15.) The managing agents directing and setting the corporate policies of the Church Defendants was a group of individuals known as the "The Governing Body." (*Id.* at ¶ 10(a).) The Governing Body established, approved, and disseminated all the administrative policies, procedures, and programs followed by all congregations on the subject of prevention and administrative response to acts of childhood sexual abuse committed by or upon its members, including childhood sexual abuse arising from or out of the activities of members of West Congregation. (*Id.* at ¶ 10(c).)

In or around 1989, Plaintiff was sexually assaulted and/or sexually abused, and molested by Church Defendants' employee and/or agent Mackey. (SAC, ¶ 27.) Mackey sexually assaulted and/or abused Plaintiff on multiple occasions by use of the trust, position, and authority he held as a fellow member, agent, and leader of West Congregation. (*Id.* at ¶ 28.) Plaintiff would attend church sponsored events at her home, as mandated by Defendants. (*Id.* at ¶ 29.) Mackey would attend these church-sponsored events and singled Plaintiff out with the intention of grooming her for inappropriate and eventual sexual assault and abuse. (*Id.* at ¶ 30.) During these church-sponsored events, Mackey would place a blanket over himself and Plaintiff and sexually abuse and/or assault her when she was only seven years old. (*Id.* at ¶ 31.) Watchtower's policies separated parents, including Plaintiff's parents, from the youth attending these events and classes, even when the events occurred in the parents' home. (*Id.* at ¶¶ 32, 33.) Mackey's sexual assault, abuse, and molestation was "done in full view of Church Defendants' Elders, ministerial servants, and congregation members." (*Id.* at ¶ 34.)

Plaintiff was sexually assaulted, abused, and molested countless times by Mackey at Church Defendants' events over a span of a few months in 1989. (SAC, ¶ 35.) Mackey also sexually assaulted, abused, and/or molested Plaintiff's minor brother and cousin prior to abusing Plaintiff. (*Id.* at ¶ 36.) Plaintiff's parents reported the sexual assault, abuse, and molestation of Plaintiff by Mackey to Church Defendants' Elders at West Congregation. (*Id.* at ¶ 37.) However, Church Defendants' Elders attempted to conceal and cover up Mackey's sexual assaults by instructing Plaintiff's parents not to report the assault to the police, but failed to take any action against Mackey. (*Ibid.*) Plaintiff's parents then reported the assault to the police, and the Church Defendants still failed to take action against Mackey. (*Id.* at ¶ 38.)

Before, during, and after Mackey's sexual assault and/or sexual abuse, and molestation of Plaintiff, Church Defendants, "through their agents and Elders knew that

Mackey's conduct and relationship with minor children, including Plaintiff, was inappropriate, unlawful, wrongful, and/or otherwise created a risk of childhood sexual assault." (SAC, ¶ 39.) Plaintiff is informed and believes that Church Defendants maintained, and still maintain, a database from Watchtower's congregation, including West Congregation, regarding Mackey's prior abuse of Plaintiff, but their policies forbid dissemination of prior reports. (*Id.* at ¶ 40.) Elders at West Congregation confirmed that Mackey inappropriately touched, sexually assaulted and/or sexually abused and molested other children, including Plaintiff, but purposely failed to: notify or warn members and parents of the risk of sexual abuse by Mackey; limit or supervise Mackey's access to children; and notify law enforcement. (*Id.* at ¶¶ 42-44.) As a result, Mackey was able to continue his sexual assaults and/or abuse and molestation of Plaintiff and remained in good standing at West Congregation. (*Id.* at ¶¶ 45, 47(a).)

On July 12, 2024, Plaintiff filed her complaint against Defendants, asserting the following causes of action:

- 1) Sexual Assault of a Minor [against Mackey];
- 2) Intentional Infliction of Emotional Distress [against Mackey];
- 3) Negligent Hiring, Supervision, and Retention [against Defendants];
- 4) Negligence [against Does 4 through 60].

On January 26, 2026, West Congregation filed this Motion for summary judgment in its favor on the entire SAC and, in the alternative, for summary adjudication on the SAC's third and fourth causes of action. No opposition was filed in response to the Motion.

On August 17, 2026, West Congregation filed a reply underscoring that no opposition to this Motion was filed by Plaintiff. While West Congregation in its reply invites the Court to decide the Motion on the ground that Plaintiff has thereby failed to comply with the separate statement requirement, the Court declines that invitation. Instead, in accordance with the strong policy of California law to decide matters on their merits, the Court will now decide West Congregation's Motion on its merits, specifically by considering whether West Congregation has met its burden for summary judgment or summary adjudication.

Legal Standard on Motion for Summary Judgment

A motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., § 437c, subd. (c).)

The "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact[.]" (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).) "A prima facie showing is one that is sufficient to support the position of the party in question." (*Id.* at p. 851.)

If the moving party makes the necessary initial showing, the burden of production

shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (*Augilar, supra*, 25 Cal.4th at p. 850.) “There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Ibid.*) “[I]f the court concludes that the [opposing party’s] evidence or inferences raise a triable issue of material fact, it must conclude its consideration and deny the [moving party’s] motion.” (*Id.* at p. 856.)

Throughout the process, the trial court “must consider all of the evidence and all of the inferences reasonably drawn therefrom[.]” (*Augilar, supra*, 25 Cal.4th at p. 844 [internal quotations omitted].) The moving party’s evidence is strictly construed, while the opposing party’s evidence is liberally construed. (*Id.* at p. 843.)

Request for Judicial Notice

As an initial matter, West Congregation requests the Court take judicial notice of the following:

- 1) Plaintiff’s SAC; and
- 2) West Congregation’s Answer to the SAC.

The request is **GRANTED** pursuant to Evidence Code section 452, subdivision (d).

Analysis of the Motion for Summary Judgment

I. West Congregation has met its burden of showing that there is no triable issue of material fact that West Congregation owed any duty to Plaintiff.

West Congregation argues that it is entitled to summary judgment because it did not owe any duty to Plaintiff. (Motion, p. 13:11-12.) Specifically, West Congregation asserts that Plaintiff did not attend West Congregation at any time relevant to her claim of abuse and she cannot establish a special relationship between West Congregation and Mackey, as he did not attend West Congregation at any time relevant to this matter. (UMF 12 [Bones Decl., ¶ 8].) Instead, it contends, the evidence shows that the abuse occurred at the Cambrian Park Congregation of Jehovah’s Witnesses. (UMF 8 [Paul Decl., ¶¶ 4-6].) Because there can be no finding of a special relationship, no duty is owed to Plaintiff and her negligence claims fail as a matter of law. (Motion, p. 14:7-9.)

“Where, as here, a complaint alleges injuries resulting from the criminal acts of third persons . . . the common law, reluctant to impose liability for nonfeasance, generally does not impose a duty upon a defendant to control the conduct of another, or to warn of such conduct, unless the defendant stands in some special relationship either to the person whose conduct needs to be controlled, or to the foreseeable victim of such conduct.” (*Conti v. Watchtower Bible & Tract Society of New York, Inc.* (2015) 235 Cal.App.4th 1214, 1227 [internal citations, quotations, and emphasis omitted].)

Here, West Congregation proffers the declaration of David Jon Paul (“Paul”), who states that he was both a Ministerial Servant and Elder at the Cambrian Park Congregation of Jehovah’s Witnesses⁶ from January 1974 until October 1998. (Paul Decl., ¶ 3.) Paul states that Mackey was a member of the Cambrian Park Congregation and that he personally knew Mackey the entire time he was there. (*Id.* at ¶ 4.) While Mackey was there, allegations of child sexual abuse were made against him and Paul was one of the elders selected to help him repair his relationship with Jehovah God. (*Id.* at ¶ 5.) As a result of the allegations against him, Mackey was removed from Cambrian Park Congregation in late 1990 and subsequently criminally convicted. (*Ibid.*) Paul further declares that Plaintiff was a member of Cambrian Park Congregation at the time and Mackey was alleged to have abused her. (*Id.* at ¶ 6.)

Additionally, West Congregation proffers the declaration of Allen Bones (“Bones”), an elder of West Congregation since 2019. (Bones Decl., ¶¶ 1, 6.) Bones states that he has served as the secretary of West Congregation since 2020 and manages records and documents to be filed with the State of California. (Bones Decl., ¶ 4.) Bones states that he reviewed West Congregation’s records and Mackey was not a member, agent, ministerial servant, or elder at West Congregation during the time of Plaintiff’s abuse or any other time. (*Id.* at ¶ 8.)

Based on the foregoing, West Congregation has submitted sufficient evidence to show that it did not stand in a special relationship with either Mackey or Plaintiff because neither party attended West Congregation. (E.g., *Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1149-1150 [“The existence of a duty depends upon the foreseeability of the risk and a weighing of policy considerations for and against imposition of liability.”][internal citations omitted].)

Accordingly, West Congregation meets its burden of establishing there is no triable issue of material fact as to duty. As noted above, Plaintiff has not opposed the motion. As such, West Congregation’s Motion for summary judgment is **GRANTED in its entirety**.⁷

Conclusion & Order

Defendant West Congregation of Jehovah’s Witnesses, San Jose, CA, Inc.’s Motion for Summary Judgment under Code of Civil Procedure Section 437c is **GRANTED** in favor of Defendant West Congregation of Jehovah’s Witnesses, San Jose, CA, Inc., and against Plaintiff J.C.

SO ORDERED.

⁶ According to Paul, the Cambrian Park Congregation ceased to exist in the early 2000s. (Paul Decl., ¶ 3.)

⁷ Given the Court’s ruling granting summary *judgment* in favor of West Congregation, the Court need not and does not reach West Congregation’s remaining arguments for summary *adjudication* of the third and fourth causes of action.

Date: August 28, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

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